

		Company (2013) 92 Cal.App.5th 958 and Kielar v. Superior Court (2023) 2032 WL 5270559] Accordingly, this Court must make a choice between the conflicting opinions. [Auto Equity Sales, Inc. v. Superior Court (1962) 57 Cal.2d 450, 456] Montemayor and Kielar are the most recent appellate decisions and discussed both Felisilda and Ford Motor Company. This Court follows Montemayor and Kielar and their reasoning. Their reasoning equally applies to this case. Plaintiff's request for judicial notice is granted Accordingly, the motion to compel arbitration is denied. Plaintiff shall give notice.
4	Sheikholeslami vs. General Motors, LLC 2021-01223844	Motion to Compel Production Plaintiff Bahar Shikholesami's Motion to Compel Further Responses to Plaintiff's Inspection demands, set No. is GRANTED in part, CONTINUED in part, and DENIED in part. (See Code Civ. Proc. § 2031.310) The motion is denied as to Categories No. 72 & 73. The hearing of the motion is continued to January 26, 2024 at 9:30 AM, as to Category No. 56. Defendant to produce a privilege log, For each withheld document or redaction, the privilege log must state at least its date, sender/author, addressee/recipient, and the general subject matter, along with any other information needed to establish the ground for withholding or redacting. (See Hernandez v. Superior Court (2003) 112 Cal.App.4th 285, 291-292; Wellpoint Healthcare Networks, Inc. v. Superior Court (1997) 59 Cal.App.4th 110, 129-130.) "The party claiming the privilege has the burden to show that the communication sought to be suppressed falls within the terms of the claimed privilege." (Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1619.) The privilege log to be served within 15 days. Each party may file a supplemental brief, not to exceed 7 pages, solely as to issues in the privilege log, which

		shall be filed and served at least 9 court days before the continued hearing. The motion is granted as to the remaining disputed inspection demand categories, except that the records to be produced shall be limited to GMC Acadia SUV models with the same engine as plaintiff's Vehicle. Defendant's objections either lacked merit, or defendant failed to justify the objections in its opposition. (See Coy v. Superior Court (1962) 58 Cal.2d 210, 220-21; Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) Defendant to serve verified responses without objections and all responsive records within 30 days. The Court imposes \$3,000.00 in monetary sanctions against defendant General Motors, LLC, payable to counsel for plaintiff within 30 days. Plaintiff shall give notice of all the above.
5	Neher vs. Credit Union of Southern California 2022-01276882	Motion for Protective Order Plaintiff Patrick Neher's Motion for a Protective Order is DENIED. (See Code Civ. Proc. § 2025.420.) Plaintiff has failed to show good cause for the requested protective order in order to prevent "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." The Court rules as follows on the evidentiary objections: Declaration of Patrick Neher. 1. Sustained, Inadmissible speculation and conclusions, and calls for an expert medical opinion. Declaration of Craig Horowitz. 1-2. Sustained, irrelevant. 3. Sustained, Inadmissible speculation and conclusions, and calls for an expert medical opinion as to plaintiff's and counsel's medical condition.